

Tentative Rulings for June 5, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	HEARING RE: MOTION FOR AN ORDER TO SHOW CAUSE RE: APPOINTMENT OF GUARDIAN AD LITEM FOR PLAINTIFF AND CROSS-DEFENDANT BERTHA WONG BY BRUCE AUERBACH

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

OSC re proof of service calendared for 7.02.26 is vacated

2.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	DEMURRER ON 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS DEBBIE CHAMBERLAIN, RODNEY CHAMBERLAIN, AND WONG FARMS, LLC JOINDER OF CROSS-DEFENDANTS WONG AND WEINGARTEN

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Direct claims of Desert Hydroponics:

Cross-Complainants do not dispute that the claims alleged in the Third Amended Cross-Complaint are direct claims purportedly brought by Desert Hydroponics, LP, by itself and not derivative claims brought by Bruce Auerbach. As explained by Cross-Defendants, they could not be, because the Third Amended Cross-Complaint must be filed in the name of the partner and name of the partnership itself as a cross-defendant to properly allege derivative claims, neither of which was done here. (See *Everest Investors 8 v. McNeil Partners* (2003) 114 Cal.App.4th 411, 425.) Accordingly, the Third Amended Cross-Complaint only includes direct claims alleged against Cross-Defendants, and any arguments that apply to derivative claims rather than direct claims are inapposite and are disregarded.

Cross-Complainants contend that the direct claims alleged in the Third Amended Cross-Complaint by Desert Hydroponics should be permitted because “the Third

Amended Cross-Complaint does not admit that BERTHA WONG and IRENE WEINGARTEN are current general partners” and therefore, Desert Hydroponics can properly assert the claims alleged in the Third Amended Cross-Complaint without their approval or consent. However, contrary to Cross-Complainant’s argument, both the Third Amended Cross-Complaint and Second Amended Cross-Complaint include allegations confirming that Bertha Wong and Irene Weingarten possess general partnership interests in Desert Hydroponics. As the court previously noted in the order on 2.24.26 sustaining the demurrer of the Second Amended Cross-Complaint, Paragraph 12 acknowledged that “[a]s of today, the ownership interests remain Wong, Weingarten, Arimco, and Bruce, all with 25% interest, as reflected in company generated K-1 forms.” Moreover, even if Cross-Complainants’ post hoc excuse that these allegations were “written in error” were given the benefit of the doubt, the Second Amended Cross-Complaint also clearly stated that Ms. Wong and Ms. Weingarten “remain” 50% owners, and the Third Amended Cross-Complaint offers no facts showing that Ms. Wong and Ms. Weingarten do not “remain” general partners.

The above admissions are reinforced in ¶18 of the Third Amended Cross-Complaint which states that in 2004 (after both Ed Wong and Ruben Weingarten had passed away), “[t]he partners, consisting of the Arimco Investors, Bruce, and Ms. Weingarten agreed to a one-year lease that was prepared and sent to [Debbie Chamberlain] for the nominal sum of one dollar.” (Third Amended Cross-Complaint, ¶ 18). That lease, which is attached as Exhibit A to the Second Amended Cross-Complaint (RJN, Ex. 1.), specifically identifies Ms. Wong and Ms. Weingarten on the signature page of the document as “Partners” in Desert Hydroponics who are signing the lease on behalf of Desert Hydroponics. Having previously attached this document as an exhibit to the Second Amended Cross-Complaint, Cross-Complainants cannot now seek to manufacture a “disputed fact” by adding new, factually unsupported allegations contradicting the exhibit that they previously attached to the SAXC and relied upon. (See *George v. eBay, Inc.* (2021) 71 Cal.App.5th 620, 628 (attachments to a complaint are assumed to be true and take precedence over any conflicting allegations in a complaint, citing *Brakke v. Economic Concepts, Inc.* (2013) 213 Cal.App.4th 761, 767–768). Thus, these prior admissions set forth in both the Third Amended Cross-Complaint and Second Amended Cross-Complaint conclusively establish Ms. Wong and Ms. Weingarten’s ownership interests in Desert Hydroponics.

Corporations Code § 15904.06(a):

Corporations Code section 15904.06(a) provides that “[e]ach general partner has equal rights in the management and conduct of the limited partnership’s activities. Except as expressly provided in this chapter, any matter relating to the activities of the limited partnership may be exclusively decided by the general partner or, if there is more than one general partner, by a majority of the general partners.” As such, Section 15904.06(a) stands for the proposition that each general partner has rights in the partnership’s management activities, and that partnership actions must be authorized by a majority of the general partners.

Cross-Complainants make an argument that Corporations Code section 15904.06(a) “does not say that alleged wrongdoers, adverse fiduciaries, or persons whose status is disputed may block the partnership from protecting its property by withholding consent.” (See Opposition, page 5). As explained by Cross-Defendants, Cross-Complainants’ argument miscomprehends the purpose of the statute and has no

support from the statute itself. The fact that Bertha Wong and Irene Weingarten, by virtue of their 50% ownership interests as general partners, may oppose or prevent Desert Hydroponics from taking actions that only Bruce Auerbach wants to engage in is precisely what is intended by the statute. As 50% general partners, they are fully entitled to participate in decisions regarding the partnership in accordance with their commensurate ownership interests. To the extent any disagreement among the general partners may result in a deadlock, such a deadlock is properly resolved by following the terms of the partnership agreement and relevant partnership statutes.

In the Opposition, Cross-Complainants also argue that the demurrers should be overruled because “the [Third Amended Cross-Complaint] expressly alleges demand futility.” (See Opposition, page 5.) This argument is inapposite because demand futility only applies to derivative actions, not actions such as this one which only allege direct claims. Because demand futility is only a pleading requirement for derivative claims, it is wholly in determining whether the Third Amended Cross-Complaint has properly alleged direct claims for purposes of ruling on the Demurrer.

Status of Bertha Wong and Irene Weingarten’s status as general partners:

In the Opposition, Cross-Complainants cite to Corporations Code section 15907.04 and claim that “[t]hose provisions do not establish, on demurrer, that BERTHA WONG and IRENE WEINGARTEN automatically became current general partners of Desert Hydroponics with management-veto rights” and that “[i]t does not provide that a surviving spouse automatically becomes a general partner with authority to veto partnership litigation.” (Opposition, pages 6-7.) However, the Third Amended Cross-Complaint (and Second Amended Cross-Complaint) already admit that Bertha Wong and Irene Weingarten became general partners in Desert Hydroponics after their husbands’ deaths and therefore, this matter is a settled issue. As discussed, Ms. Weingarten’s ongoing ownership interest in Desert Hydroponics after her husband’s death is confirmed in Paragraph 18 of the Third Amended Cross-Complaint, which states that in 2004, “[t]he partners, consisting of the Arimco Investors, Bruce, and Ms. Weingarten agreed to a one-year lease that was prepared and sent to [Debbie Chamberlain] for the nominal sum of one dollar.” (Third Amended Cross-Complaint, ¶ 18.). Furthermore, Ms. Wong and Ms. Weingarten’s ongoing ownership interest also is confirmed in the lease agreement itself, which identifies both Ms. Wong and Ms. Weingarten as “Partners” of Desert Hydroponics. (Ex. A to Second Amended Cross-Complaint, also attached as Ex. 1 to RJN.). Both of these events took place after Ed Wong and Ruben Weingarten had passed away. As a result, there is no dispute that Ms. Wong and Ms. Weingarten became general partners in Desert Hydroponics.

Corporation Code section 15907.04 provides that when a partner dies, his spouse or other personal representative exercises the same rights as a partner in the partnership. (See Corp. Code § 15907.04 (“If a partner dies, the deceased partner’s personal representative or other legal representative may exercise the rights of a transferee as provided in Section 15907.02 and, for the purposes of settling the estate, may exercise the rights of a current limited partner under Section 15903.04.”); see also, Fmr. Corp. Code § 15675(a) (former statute under CRLPA providing that “[i]f a limited partner who is an individual dies . . . , the partner’s executor, administrator, guardian, conservator, or other legal representative may exercise all the partner’s rights for the purpose of settling the partner’s estate or administering the partner’s property.”). As argued by Cross-

Defendants in their reply, the statute provides that Ms. Wong and Ms. Weingarten became partners in Desert Hydroponics by operation of law.

Statute of Limitations:

In its February 24, 2026 ruling, the court sustained the demurrers to the Second Amended Cross-Complaint based upon the statute of limitations. The court found that the facts alleged in the Second Amended Cross-Complaint showed Desert Hydroponics had notice of Cross-Defendants' continued possession of the subject property no later than 2005:

"In the SAXC, Cross-Complainants allege a cause of action for Ejectment against Cross-Defendants. (SAXC at ¶¶45-53). The statute of limitations for an ejectment claim is five years. (See CCP § 318.) Here, in the SAXC, the Cross-Complainants admit the following facts:

- The lease was entered into on October 1, 2004 (SAXC at ¶18);
- The lease expired on September 30, 2005 (SAXC at ¶18);
- Cross-Defendants' continued possession of the subject farmland after the expiration of the lease was known to Bertha Wong and Irene Weingarten "for a period of approximately 19 years beyond the original authorized one-year lease term..." (SAXC at ¶ 31); and
- Bertha Wong and Irene Weingarten were (and are) general partners of Desert Hydroponics (SAXC at ¶12) and therefore, Desert Hydroponics had notice of Cross-Defendants continued possession immediately following the expiration of the one-year lease in 2005.

Based these allegations in the SAXC, the five-year statute of limitations period began running on October 1, 2005 and expired on October 1, 2010 – over a decade before the action was brought. The Ejectment cause of action is time-barred. For the same reasons, the SAXC's related 2nd (Accounting), 3rd (Unjust Enrichment) and 4th (Declaratory Relief) causes of action, which are derivative of the same alleged possession and use beginning in 2004-2005, are time-barred as well."

Even if Cross-Complainants had established standing to bring the subject cross-claims (see above discussion), the causes of action in the Third Amended Cross-Complaint are barred by the statute of limitations, and is an independent ground to sustain this demurrer.

As noted by Cross-Defendants, in the Third Amended Cross-Complaint, Cross-Complainants allege a cause of action for Ejectment against Cross-Defendants. (¶¶43-50). The statute of limitations for an ejectment claim is five years. (CCP § 318.) The Third Amended Cross-Complaint adds a new sixth cause of action for "Wrongful Occupation of Real Property." The statute of limitations for that new cross-claim is three years. (CCP § 338(b) (three-year statute of limitations for an action for trespass or injury to real property).

In ¶46 of the Second Amended Cross-Complaint, it was previously alleged that: "Cross-Complainant DESERT HYDROPONICS LP brings this claim for ejectment because it was, at all relevant times mentioned below, entitled to possession of the real property commonly know[n] as the ten-acre parcel located at 90300 Avenue 70, Mecca, California, which includes the farmhouse situated thereon ("Subject Property"), subject to a one-year lease." (Second Amended Cross-Complaint, ¶46.) These allegations supported the Court's ruling that the statute of limitations began running in 2005. Cross-Complainants have not omitted these allegations of having been entitled to possession "at all relevant times mentioned below" and instead state in a conclusory fashion that "now that DESERT HYDROPONICS LP legally owns the Property as of August 25, 2022, it has

standing to bring this cause of action for Ejectment, accruing as of that date against DEBBIE CHAMBERLAIN, RODNEY CHAMBERLAIN, and WONG FARMS, LLC.” (Third Amended Cross-Complaint, ¶ 44.)

In ¶31 of the Second Amended Cross-Complaint it was previously alleged that “Cross-Defendants breached their fiduciary duties to Cross-Complainants by allowing and/or permitting Cross-Defendants DEBBIE CHAMBERLAIN and RODNEY CHAMBERLAIN to possess and operate the farmland for a period of approximately 19 years beyond the original authorized one-year lease term, while Cross-Defendant IRENE WEINGARTEN conspired with BERTHA WONG and her daughter to actively conceal such activity from BRUCE AUERBACH.” (Second Amended Cross-Complaint, ¶31.) Now, in the Third Amended Cross-Complaint, Cross-Complainants omit these allegations which show that Bertha Wong and Irene Weingarten’s (i.e., Desert Hydroponics’) knowledge of Cross-Defendants’ continued possession of the subject property after the expiration of the lease “for a period of approximately 19 years beyond the original authorized one-year lease term” and instead allege, again in contradictory and conclusory fashion, that “[s]ince August 25, 2022, Cross-Defendants breached their fiduciary duties to BRUCE AUERBACH and Arimco Investors by allowing and/or permitting Cross-Defendants DEBBIE CHAMBERLAIN and RODNEY CHAMBERLAIN, daughter and son-in-law of BERTHA WONG, to possess and operate the farm on the Property. . . .” (Third Amended Cross-Complaint, ¶32.)

Cross-Complainants’ attempted use of August 25, 2022 as the supposed date upon which the applicable statutes of limitations began to run directly conflicts with the admissions in the Second Amended Cross-Complaint that Desert Hydroponics, through its general partners, Bertha Wong and Irene Weingarten, was fully aware of Cross-Defendants’ continued possession of the ten-acre property in 2005. Cross-Complainants cannot plead around bad facts that they themselves alleged by omitting those facts in amended pleadings and alleging contradictory facts instead. (See *McKell v. Washington Mutual Inc.* (2006) 142 Cal.App.4th 1457, 1491; *Womack v. Lovell* (2015) 237 Cal.App.4th 772, 787.) These are sham allegations.

5th Cause of Action for ejectment and 6th Cause of Action for Wrongful Occupation of Real Property:

Cross-Complainants contend that the fifth cause of action for ejectment and sixth cause of action for wrongful occupation are timely because the statute of limitations only began running on August 25, 2022, the date upon which the quiet title judgment to the real property was entered. However, the claims in the Third Amended Cross-Complaint which are the subject of this Demurrer are wholly dependent upon a finding that Desert Hydroponics was authorized to bring them in the first place. As discussed, the admitted facts show that there has been no such authorization and therefore the direct claims in the Third Amended Cross-Complaint that have been purportedly brought by Desert Hydroponics are subject to demurrer.

Also, there has been no wrongful possession of the subject real property by Cross-Defendants, since the general partners of Desert Hydroponics (i.e., Bertha Wong and Irene Weingarten) have known about and consented to Cross-Defendants’ continued use and occupation of the property since 2004. Thus, irrespective of when the statute of limitations began to run on those claims, Cross-Complainants cannot allege valid ejectment or wrongful occupation of real property claims in any event.

Cross-Complainants' argument that the statute of limitations did not begin to run until August 25, 2022, when Desert Hydroponics obtained formal title to the property, is incorrect as a matter of law. Both claims for ejectment and claims for wrongful possession are based upon possessory interests in real property, not title. (See *Craviotto v. All Persons* (1928) 93 Cal.App. 346, 352 ("Generally speaking, the action of ejectment is merely a possessory action, and is confined to those cases where the claimant has a possessory title; that is to say, a right of entry upon the land."); *Lightner Mining Co. v. Lane* (1911) 161 Cal. 689, 694-95 ("It is a well-settled proposition that the proper party plaintiff in an action for trespass to real property is the person in actual possession. No averment of title in plaintiff is necessary.")). Accordingly, the date upon which title actually passed to Desert Hydroponics is irrelevant for purposes of calculating the statute of limitations, and the statute of limitations for these possessory claims began running in 2005.

2nd Accounting, 3rd Unjust Enrichment and 4th Declaratory Relief Causes of Action:

Cross-Complainants contend that these claims raise factual and equitable issues unsuitable for demurrer. However, these claims (which are alleged by Desert Hydroponics) are dependent upon a finding that Desert Hydroponics was authorized to bring them in the first place. As discussed, this is not the case here.

Cross-Defendants' Requests for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Second Amended Cross-Complaint and attached exhibits CVPS 2402052
2. This Court's ruling on 2.24.26 regarding the demurrer to the Second Amended Cross-Complaint CVPS 2402052

Cross-Defendants Bertha Wong and Irene Weingarten Demurrer via Joinder; as to the 2nd, 3rd and 4th Causes of Action, the Demurrer is SUSTAINED without leave to amend.

Cross-Defendants Debbie Chamberlain, Rodney Chamberlain and Wong Farms, LLC Demurrer as to the 2nd, 3rd, 4th, 5th and 6th Causes of Action, SUSTAINED, without leave to amend.

*The court notes that the motion by Cross-Defendants Debbie and Rodney Chamberlain and Wong Farms LLC was a demurrer for the 2nd-6th causes of action and ruled on those causes, despite the proposed order only requesting the 2nd-5th causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	DEMURRER ON 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS BERTHA WONG AND IRENE WEINGARTEN

Tentative Ruling:

Statute of Limitations:

Paragraph 18 of The Cross-Complaint and Paragraph 19 of the First Amended Cross-Complaint and the Second Amended Cross-Complaint state the same allegation:

“Having not visited the farm property for so many years, it was not until 2019 when BRUCE AUERBACH took the occasion to drive out to the property to speak with Plaintiff BERTHA WONG, at the farmhouse. When he arrived, he was completely shocked by what he saw because, not only was the farm not dormant, BRUCE AUERBACH learned that BERTHA WONG had vacated the farmhouse about 5 years before, because her daughter Debbie Chamberlain, husband Rodney Chamberlain and her family were living in the farmhouse, rent free, and BERTHA WONG was living elsewhere.”

Paragraph 20 of the Third Amended Cross-Complaint the language varies slightly, but is essentially and materially the same:

“Having not visited the farm property for many years, it was not until 2019 when BRUCE AUERBACH took the occasion to drive out the property to speak with Plaintiff BERTHA WONG, at the farmhouse. When he arrived, he was shocked by what he saw because not only was the farmhouse dormant, he learned that BERTHA WONG had vacated the farmhouse about 5 years ago, because her daughter DEBBIE CHAMBERLAIN, husband RODNEY CHAMBERLAIN were living in the farmhouse, rent free, and BERTHA WONG was living elsewhere.”

The Statute of Limitations for breach of fiduciary duty is three or four years, depending on whether the breach is fraudulent or nonfraudulent. (*American Master Lease, LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1479). Regardless of Cross-Complainant’s current or future theory, their claim for breach of fiduciary duty is time-barred. Bruce Auerbach brought the first cause of action for breach of fiduciary duty as an individual against Cross-Defendants. The entire alleged basis of his claim for breach of fiduciary duty (Wong and Weingarten allowing the Chamberlains to possess and operate the farm while precluding DESERT HYDROPONICS from receiving any income or revenue from such use) was laid bare to him when he visited the subject property in 2019 and was “shocked” by what he saw. Even if Bruce Auerbach visited the property on December 31, 2019, he did not file his original claim for breach of fiduciary duty until December 16, 2024, the date of the filing of the original cross-complaint, over 4 years and 11 months beyond the last possible date he became aware of his claim for breach of fiduciary duty.

New allegations of acquisition of standing:

In the Third Amended Cross-Complaint, Cross-Complainants added ¶25 which states:

“Now that DESERT HYDROPONICS LP legally owns the Property as of August 25, 2022, it has standing to bring the various causes of action formally accruing as of that date against the various Cross-Defendants to recover damages for their wrongful conduct concerning the Property, including but not limited to operating the farm without authority, consent, or accounting for revenues generated therefrom, including residing in the farmhouse rent free without authority or consent, as they have no right, title to or interest therein.”

As noted by Cross-Defendants, this new allegation is intended to be applicable to individual defendant Bruce Auerbach's 1st cause of action for breach of fiduciary duty, as that cause of action now alleges in ¶32 that a breach of fiduciary duty has occurred "since August 25, 2022."

In *Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 379, the trial court sustained a demurrer to a second amended complaint and plaintiff appealed. The Court of Appeal held, in relevant part, that properly disregarded allegations in the second amended complaint that the accident occurred on the premises of a supermarket, rather than in a public street, the amendment was made solely for purposes of avoiding a demurrer. The Court discussed an exception to the general rule that a court must assume the truth of factual allegations of the complaint where a party files an amended complaint and seeks to avoid the defects of a prior complaint by omitting facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings. *Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 384-385. In these circumstances, the policy against sham pleading permits the court to take judicial notice of the prior pleadings and requires the pleader explain the inconsistency. (*Id.*) If he fails to do so, the court may disregard the inconsistent allegations and read into the complaint the allegations of the superseded complaint. (*Id.*)

In the present matter, individual Bruce Auerbach did not explain how he lacked standing to bring a claim for breach of fiduciary duty against Cross-Defendants prior to August 25, 2022. Paragraph 12 of the Third Amended Cross-Complaint alleges that Bruce Auerbach and Cross-Defendants were all partners in Desert Hydroponics since 1983. Paragraph 30 alleges that as partners, Cross-Defendants owed him a duty of loyalty, and paragraph 32 of the Cross-Complaint alleges that Cross-Defendants breached that duty of loyalty by allowing Debbie Chamberlain and Rodney Chamberlain to possess and operate the farm on the Property without Desert Hydroponics LP receiving any income or revenue from that use.

The Third Amended Cross-Complaint further alleges that legal title to the property suffered from a conveyancing error that contained an erroneous legal description that was subsequently cleared up by a quiet title action judgment on August 25, 2022. (Third Amended Cross-Complaint, ¶ 23.) The Third Amended Cross-Complaint is devoid of any allegations that Desert Hydroponics LP lacked equitable title to the Property at any time, or that Bruce Auerbach, as an alleged partner in Desert Hydroponics, had no rights in the Property until August 25, 2022, or that the clearing up of the conveyancing error containing a legal description was necessary to grant Auerbach standing to bring his action for breach of fiduciary duty against Defendants. The newly inserted Paragraph 25 in the Third Amended Cross-Complaint, inserting the acquisition of standing by Desert Hydroponics on August 25, 2022 as a result of the judgment in Riverside County Case No. CVPS2105040, is a sham pleading designed to cure the fact that Bruce Auerbach discovered the facts underlying his claim for breach of fiduciary when he visited the Property and was "shocked by what he saw" in 2019.

As noted by Cross-Defendants, the Complaint in Riverside County Case No. CVPS 2105040, brought by Bruce Auerbach as a general partner of Desert Hydroponics, alleges throughout that Desert Hydroponics, LP is the rightful owner of the Property. In ¶36, it is alleged:

"Plaintiff is informed, believes, and thereon alleges that incorrect recording on February 10, 1975, was in direct contradiction to what the parties to the Partnership Agreement intended, was in complete contradiction to how the Partnership Agreement

operated after execution of the Partnership Agreement, and that but for the Incorrect Legal Description the Corp. Grant Deed would have conveyed the true and correct lot, specifically the Property, to Plaintiff.”

Here, in present Third Amended Cross-Complaint, there is nothing requiring the correction of title to the property to imbue Bruce Auerbach with formerly missing standing to bring the first cause of action for breach of fiduciary duty.

Capacity of Bertha Wong:

The capacity of Bertha Wong is not relevant to the present demurrer or motion to strike. The defect(s) at issue in these motions are on the face of the third amended cross-complaint. Bertha Wong is not submitting declarations, testifying or otherwise submitting evidence at this hearing.

Cross-Defendants’ Requests for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Cross-Complaint CVPS 2402052
2. First Amended Cross-Complaint CVPS 2402052
3. Second Amended Cross-Complaint CVPS 2402052
3. Third Amended Cross-Complaint CVPS 2402052
4. This Court’s ruling on 2.24.26 regarding the demurrer to the Second Amended Cross-Complaint CVPS 2402052
5. Verified Complaint from CVPS 2105040

Cross-Defendants Bertha Wong and Irene Weingarten Demurrer to the 1st Cause of Action of the Third Amended Cross-Complaint SUSTAINED without leave to amend.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	MOTION TO STRIKE 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS BERTHA WONG AND IRENE WEINGARTEN

Tentative Ruling: No tentative ruling. Motion is MOOT in light of the court’s ruling as to the demurrers of Cross-Defendants Bertha Wong and Irene Weingarten.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2405849	HOLMES VS HERRIN	MOTION TO DETERMINE GOOD FAITH SETTLEMENT ON COMPLAINT OF DONNA HOLMES BY AVONDALE GOLF CLUB

Tentative Ruling: No tentative ruling. A hearing shall be conducted.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2406494	COLTON VS BMW OF NORTH	MOTION FOR ATTORNEYS FEES BY ALLISON COLTON, KYLE COLTON

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, the parties settled through a written settlement agreement, with the Court to decide attorney fees upon separate motion. (Daghighian Decl. ¶ 39.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records, Declaration of Chad A. David, and motion (pp. 5-6), counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Chad David, Attorney	5.5	\$795.00	\$4,372.50
Joshua Youssefi, Attorney	8.4	\$745.00	\$6,258.00
Nicolas Dillavou, Attorney	18.4	\$745.00	\$13,708.00
Christine Morano, Attorney	7.5	\$495.00	\$3,712.50
Lisa Tyler, Paralegal	14	\$250.00	\$3,500.00
Anna Costello, Paralegal	22.7	\$250.00	\$5,675.00
Inigo Gatus, Paralegal	1.4	\$250.00	\$350.00
Sierra Jacobs, Paralegal	3	\$250.00	\$750.00
Additional Wrap Up Fees	6	\$745.00	\$4,470.00
TOTAL	86.9		\$42,796.00

Here, the hourly rates are not reasonable for Riverside County. Counsel is located in Temecula yet is billing at rates comparable to those in Los Angeles County. The court is reducing to reasonable rates in this area.

A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) In this case, there were three partners, one associate attorney, and four paralegals. However, Plaintiffs do not explain how this routine lemon law action, which required no law or motion and settled months before trial, necessitated the higher billing rates of a managing partner or lead trial attorney. Accordingly, the partners' hourly rates are reduced.

A review of the billing records reveals numerous instances of duplicative and unnecessary billing entries. Paralegals billed for attending case meetings to record notes, filing notes, sending internal emails, creating and sending Zoom links for depositions, and for processing, mailing, and tracking the settlement check. These are administrative and clerical tasks.

Plaintiffs seek 6.0 hours in wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion, as well as collecting payment. However, the billing records show that the settlement check has been processed and mailed. (David Decl., Exh. 7.) This amount of time to prepare a motion and prepare for a hearing is excessive.

Plaintiffs seek a 1.3x multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) There is no evidence supporting such an enhancement in this uncomplicated case. Specifically, there was no exceptional quality of work or skill in this case to justify a multiplier, especially as there was no law and motion presented in this basic lemon law case. Plaintiffs submit no evidence to show that the depositions and written discovery performed in this case were anything but routine. Counsel's request based on contingency fee should already be accounted for in their hourly rate.

As for costs, Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of "costs and expenses" to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiffs allege they have already filed a memorandum of costs, no such filing appears on the docket. (Motion, p. 9; David Decl., Exh. 8.) Defendant's opposition does not address Plaintiffs' claimed costs.

Lastly, it should be pointed out that in Plaintiff's motion for attorney's fees, page 6 lists Nicolas Dillavou billing 18.4 hours at a rate of \$745 per hour for a total of \$21,158. The correct amount per those numbers is \$13,708, a difference of \$7450.

The modifications to the award of attorney fees are reflected in the chart below:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Chad David, Attorney	5.5	\$550.00	\$3,025.00
Joshua Youssefi, Attorney	8.4	\$500.00	\$4,200.00
Nicolas Dillavou, Attorney	18.4	\$500.00	\$9,200.00
Christine Morano, Attorney	7.5	\$300.00	\$2,250.00
Lisa Tyler, Paralegal	14	\$150.00	\$2,100.00
Anna Costello, Paralegal	19.7	\$150.00	\$2,955.00
Inigo Gatus, Paralegal	1.4	\$150.00	\$210.00
Sierra Jacobs, Paralegal	3	\$150.00	\$450.00
Additional Wrap Up Fees	2	\$300.00	\$600.00
TOTAL	79.9		\$24,990.00

Motion for Attorney's Fees GRANTED as shown above.

Award of \$24,990.00 in fees + \$800.40 costs for total award of \$25,790.40.

OSC re dismissal confirmed for 10.19.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2501673	SUGAMELI-JARFAS VS GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY	MOTION FOR ATTORNEYS FEES BY DARLEAN VIRGINIA SUGAMELI- JARFAS

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, the parties settled through a written settlement agreement, with the Court to decide attorney fees upon separate motion. (Daghighian Decl. ¶ 39.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Sepehr Daghighian, ¶ 5-11, counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Sepehr Daghighian, Partner	12.1	\$625.00	\$7,562.50
Michael Rosenstein, Partner	1.3	\$700.00	\$910.00
Brian Murray, Associate	20.3	\$550.00	\$11,165.00
Miguel Ortiz, Associate	2.0	\$525.00	\$1,050.00
TOTAL	35.7		\$20,687.50

Here, the hourly rates are not reasonable for Riverside County. Counsel is located in Los Angeles County. The court is reducing to reasonable rates in this area.

A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) There were two partners, one senior associate, and one associate attorney working on this matter. There is no indication that this case was so complex as to require the higher billing rates of two partners and a senior associate with hourly rates ranging from \$550.00 to \$700.00 rather than a single associate attorney. Indeed, Daghighian and Rosenstein’s contributions include drafting deposition notices and the instant fee motion, as well as client communications. The court will not award the higher billing rate of a partner to accomplish routine tasks, especially as the bulk of the case workup was performed by Murray, a senior associate attorney. Additionally, this is a routine lemon law case, which did not require any law or motion, and therefore should not necessitate the higher billing rate of a senior associate rather than an associate attorney.

Further, all of the timekeepers are attorneys because Plaintiff’s counsel “do[es] not bill for paralegal and administrative work.” (Daghighian Decl., ¶ 7.) However, contrary to this assertion, Murray billed at least 2.0 hours for calculating deadlines and updating the litigation calendar.

Daghighian billed 3.0 hours for drafting the underlying fee motion, and expects to spend another 7.5 hours to review the opposition, draft the reply, and attend the hearing on this motion. This amount of time for a partner to prepare a motion and prepare for a hearing is excessive.

As to the request for a multiplier, the purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.

Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.)

Plaintiff seeks a “modest” 50% multiplier for litigating this basic lemon law case. However, there is no reason for a lodestar enhancement here. The evidence shows there was limited law and motion presented apart from a joint stipulation. Plaintiff submits no evidence to show that the depositions and written discovery performed in this case were anything but routine. Accordingly, this was not a complicated case and there is no evidence of any exceptional quality of work to justify a multiplier. Counsel’s request based on contingency fee should already be accounted for in their hourly rate.

As for costs, Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiff seeks \$3,033.54 in costs and expenses in litigating this case. Defendant does not contest the amount of costs claimed by Plaintiff.

The modifications to the award of attorney fees are reflected in the chart below:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Sepehr Daghighian, Partner	5.6	\$525.00	\$2940.00
Michael Rosenstein, Partner	1.3	550.00	\$825.00
Brian Murray, Associate	18.3	\$350.00	\$6,405.00
Miguel Ortiz, Associate	2	\$325.00	\$650.00
TOTAL	27.2		\$10,820.00

Motion for Attorney’s Fees GRANTED as shown above.

Award of \$10,820.00 in fees + \$3,033.54 costs for total award of \$13,853.54.

OSC re dismissal confirmed for 8.17.26.